



MAKE A COMPLAINT

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TRIBUNAL

The Tribunal process

*The Tribunal process includes Tribunal
Dispute Resolution meetings and, if
need be, a tribunal hearing to resolve
the complaint.*

What happens during the Tribunal process?

The Tribunal makes decisions about some, but not all, human rights complaints made under the [Alberta Human Rights Act](#). Complaints must first go through the [Commission's complaint resolution process](#) before they can go to the Tribunal.

Complaints only go to the Tribunal when:

- the Director refers a complaint to the Chief of the Commission and Tribunals for resolution, or
- the Chief overturns (disagrees with) the Director's dismissal decision after the complainant files an appeal (known as a [request for review](#)).

If a complaint goes to the Tribunal, the Tribunal Office will contact the parties. The parties can choose to participate in Tribunal Dispute Resolution (TDR). The parties can also agree to settle the complaint at any other time in the process. If the parties cannot come to an agreement to settle, they will go to a tribunal hearing for a final decision.

What you need to know

- A complaint **must** first go through the Commission's complaint process. It cannot go directly to the Tribunal.
- TDR is a confidential and voluntary mediation process where a ~~Member of the Commission~~ helps the parties try to resolve the complaint.
- If the parties cannot reach an agreement at TDR, the complaint goes to a tribunal hearing for a final and binding decision.
- The Tribunal has the authority to order ~~remedies~~ against the respondent if they believe the complaint has merit.

Tribunal Dispute Resolution (TDR)

If a complaint reaches the Tribunal, the first step is TDR. TDR is a confidential and voluntary mediation process. The complainant and respondent have decision-making power in this step. The parties meet through videoconference with a Member who helps them try to resolve the issues in the complaint.

If the parties resolve the complaint at TDR, the complaint is closed. If the parties cannot resolve the complaint at TDR, they go to a tribunal hearing.

Read more on our [Tribunal Dispute Resolution page](#).

Tribunal hearings

At a tribunal hearing, the parties present their cases to a human rights tribunal. A tribunal usually consists of one Member but can be up to three Members. During a hearing, the parties make opening statements, present their cases by asking witnesses questions, and make closing statements. Each party must prove their case with witness testimonies and documentary proof. All tribunal hearings are open to the public, except where a Tribunal restricts access.

After the hearing ends, the Tribunal takes time to make a decision, including, if warranted, ordering remedies. The decision is based on the facts of the situation, the *Alberta Human Rights Act*, and previous human rights decisions. All decisions, including interim decisions, screening decisions (made under section 26 of the *Alberta Human Rights Act*), and hearing decisions, are available to the public for free. Refer to the [Human rights decisions page](#) to access all Tribunal decisions.

Read more on our [Tribunal hearings page](#).

FAQs

Can I withdraw my complaint?

Do I need a lawyer to represent me during the complaint or Tribunal process?

What cultural or spiritual practices may Indigenous people use during the complaint and Tribunal process?

What if the respondent goes bankrupt during the Tribunal process?

What if the respondent corporation is start, struck, dissolved, or without assets?

How do I file and serve my documents at the Tribunal?

Can the public access hearings and documents?

How long will it take my complaint to get through the Commission's human rights complaint process?

Does the Director participate in the Tribunal process?

What kinds of accommodation are available during the complaint process and how do I request it?

Resources

Complaint Process

Forms

Related to The Tribunal process

Tribunal Dispute Resolution

Tribunal Dispute Resolution is a voluntary and confidential mediation process where the complainant and respondent try to settle a complaint with the help of a Member of the Commission.

Tribunal hearings

At a tribunal hearing, the parties present their cases to a neutral decision-maker who has knowledge and training in human rights law and issues.

Tribunal

About the Tribunal

Review of the Director's dismissal

Hearing schedule

Laws and practice directions

Human rights decisions

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Tribunal decisions are
available on the Canadian
Legal Information Institute
website



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Our vision is a vibrant and inclusive Alberta where the rich diversity of people is celebrated and respected, and where everyone has the opportunity to fully participate in society, free from discrimination.

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